

3. 9:00 AM CASE NUMBER: L25-00946

CASE NAME: CAPITAL ONE N.A. VS. MADISON ROGERS

NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed, 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed, however, the proof of service of the Motion indicates mail service on an address in Mill Valley. There is no evidence that Defendant resides at this address. The address provided in the Answer as well as in the proof of service of process lists an address in Brentwood.

Thus, this court finds that Plaintiff has not provided Defendant notice with this Motion or the hearing.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to provide notice to Defendant of Motion and hearing date.

4. 9:00 AM CASE NUMBER: L25-03203

CASE NAME: JPMORGAN CHASE BANK N.A. VS. JOANNE BATT

NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY:

TENTATIVE RULING:

Plaintiff filed, on 3/27/26, an amended Motion to vacate dismissal and enter judgment under the terms of a written agreement. The hearing was originally scheduled for 5/6/26, but on that date, this court found that Plaintiff had not served Defendant with a copy of the Motion or the hearing. There was no evidence that the mailing address used for service on the Defendant was in fact the correct address. Defendant had not filed an Answer, and Plaintiff had never served Defendant with process.

This court continued the hearing to 8/11/26, 9am, and ordered Plaintiff to properly serve the Defendant with a copy of the Motion and notice of the hearing.

On 6/9, Plaintiff filed proof that they provided notice to the Defendant of the hearing on 8/11/26, but used the same mailing address as that for the 5/6/26, hearing and provided no additional evidence to corroborate that this is, in fact, the correct address for Defendant.

Disposition

This is the second time Plaintiff has failed to properly serve Defendant.

This Motion will be dropped.

5. 9:00 AM CASE NUMBER: L25-03863
CASE NAME: WELLS FARGO BANK, NA VS. NICHOLAS TORRE
MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLTF'S REQ FOR
ADMISSIONS AS ADMITTED FILED BY PLTF. ON 04/14/2026
FILED BY: WELLS FARGO BANK, NA

***TENTATIVE RULING**

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/14/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of the Motion and Declaration, indicating mail service to Defendant at a Walnut Creek address.

Plaintiff then filed an Amended Notice of the Motion on 5/4/26, and also filed a proof of service indicated that this Amended Notice was served by mail at an Orinda address, the same Orinda address that Defendant listed on his Answer. The Amended Notice, however, did not contain any points and authorities, and did not contain the discovery requests at issue.

No response has been filed by the Defendant.

This court finds that there is no service of the Motion on Defendant, since the address used for notice of the Motion is a Walnut Creek address, and there is no evidence to suggest that Defendant resides at that address.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to provide notice of Motion and new hearing date to Defendant.

Court to file Order.